

An Act

ENROLLED SENATE
BILL NO. 1847

By: Green of the Senate

and

Moore and Deck of the House

An Act relating to Medicaid home- and community-based services; amending 56 O.S. 2021, Section 1017.3, which relates to ADvantage Waiver Program; modifying eligibility criteria; providing certain exception; providing an effective date; and declaring an emergency.

SUBJECT: Medicaid ADvantage Waiver eligibility criteria

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 56 O.S. 2021, Section 1017.3, is amended to read as follows:

Section 1017.3. To be eligible for the ADvantage Waiver Program, a person shall:

1. Qualify financially for Medicaid;

2. Be:

a. sixty-five (65) years of age or older, or

b. nineteen (19) to sixty-four (64) years of age and:

(1) be a physically disabled adult, as determined by the Social Security Administration, ~~age twenty-one (21) years or older without~~

- (2) have a developmental disability; provided, the individual does not have an intellectual disability or cognitive impairment related to the developmental disability, or
- (3) have a clinically documented, progressive, and degenerative disease that responds to treatment and previously required hospital- or long-term-care-facility level of care to maintain the treatment regimen to prevent health deterioration;

3. Be determined to meet the nursing facility institutional level of care by the ~~Aging Services Division of the~~ Department of Human Services;

4. Reside in his or her own home ~~or~~, a family member's home, or an assisted living center contracted with the Department of Human Services under the ADvantage Waiver Program; and

5. Have needs that can be safely met with waiver services and family or community supports.

SECTION 2. This act shall become effective July 1, 2026.

SECTION 3. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the Senate the 20th day of April, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 13th day of April, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____